

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANTOINE WEEKS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD OFFICER
MARK LEWIS, SHIELD NO. 5062; NYPD OFFICER
FIRST NAME UNKNOWN DARCY; NYPD OFFICER
KYLE YOUNG, 113th PRECINCT; NYPD OFFICER
TIMOTHY RIZZO, 113th PRECINCT DETECTIVE SQUAD;
NYPD SERGEANT EDWARD SCALI, 113th PRECINCT;
NYPD SERGEANT CHARISSE GONZALEZ, 113th
PRECINCT; NYPD DET. PATRICK NOZDROVICKY,
323-113 DETECTIVE SQUAD; NYPD OFFICER MATILDE
LEONARDI, QUEENS SOUTH EVIDENCE COLLECTION
TEAM; NYPD SERGEANT MATTHEW SLEAR,
PATROL BOROUGH QUEENS SOUTH ACU;
NYPD SDS CORTNEY CUMMINGS, 101st PRECINCT
DETECTIVE SQUAD; NYPD SGT.
JOHN MCCORMICK, 113th PRECINCT; and
NYPD DET. JAMES MCGARRY, 113th PRECINCT,

Defendants.

Summons

Index No.

Plaintiff designates
Queens County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: Brooklyn, New York
June 30, 2021



Gideon Orion Oliver
Attorney for Plaintiff
Antoine Weeks
277 Broadway, Suite 1501
New York, New York 10007
718-783-3682
Gideon@GideonLaw.com

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

NYPD OFFICER MARK LEWIS, SHIELD NO. 5062;
NYPD OFFICER FIRST NAME UNKNOWN DARCY;
NYPD OFFICER KYLE YOUNG, 113th PRECINCT;
NYPD OFFICER TIMOTHY RIZZO, 113th PRECINCT DETECTIVE SQUAD;
NYPD SERGEANT EDWARD SCALI, 113th PRECINCT;
NYPD SERGEANT CHARISSE GONZALEZ, 113th PRECINCT;
NYPD DET. PATRICK NOZDROVICKY, 323-113 DETECTIVE SQUAD;
NYPD OFFICER MATILDE LEONARDI, QUEENS SOUTH EVIDENCE COLLECTION
TEAM;
NYPD SERGEANT MATTHEW SLEAR, PATROL BOROUGH QUEENS SOUTH ACU;
NYPD SDS CORTNEY CUMMINGS, 101st PRECINCT DETECTIVE SQUAD;
NYPD SGT. JOHN MCCORMICK, 113th PRECINCT; and
NYPD DET. JAMES MCGARRY, 113th PRECINCT,
c/o One Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

ANTOINE WEEKS,

Verified Complaint

Plaintiff,

Index No.

-against-

THE CITY OF NEW YORK; NYPD OFFICER
MARK LEWIS, SHIELD NO. 5062; NYPD OFFICER
FIRST NAME UNKNOWN DARCY; NYPD OFFICER
KYLE YOUNG, 113th PRECINCT; NYPD OFFICER
TIMOTHY RIZZO, 113th PRECINCT DETECTIVE SQUAD;
NYPD SERGEANT EDWARD SCALI, 113th PRECINCT;
NYPD SERGEANT CHARISSE GONZALEZ, 113th
PRECINCT; NYPD DET. PATRICK NOZDROVICKY,
323-113 DETECTIVE SQUAD; NYPD OFFICER MATILDE
LEONARDI, QUEENS SOUTH EVIDENCE COLLECTION
TEAM; NYPD SERGEANT MATTHEW SLEAR,
PATROL BOROUGH QUEENS SOUTH ACU;
NYPD SDS CORTNEY CUMMINGS, 101st PRECINCT
DETECTIVE SQUAD; NYPD SGT.
JOHN MCCORMICK, 113th PRECINCT; and
NYPD DET. JAMES MCGARRY, 113th PRECINCT,

Defendants.

-----X

Plaintiff ANTOINE WEEKS, by his attorney, GIDEON ORION OLIVER, as and for his
Verified Complaint against the Defendants in this matter, hereby states as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action to vindicate his rights under New York State law and the constitutions of the State of New York and the United States of America related to the illegal seizure of his car and his resulting prosecution, brought without probable cause, for allegedly possessing contraband found therein, as a result of which Mr. Weeks was incarcerated for almost

three and a half years, before the New York State Appellate Division – First Department dismissed the charges and he was released.

JURISDICTION AND VENUE

2. This action is brought pursuant to the Constitution and common laws of the State of New York as well as pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiff's rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. The causes of action all arise within the State of New York in Queens County.

5. Venue is proper in Queens County under CPLR § 503(a) in that Plaintiff currently resides in Queens County and CPLR § 504(4) insofar as the action is against Defendant City of New York and the underlying events occurred in Queens County.

6. Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction.

GENERAL MUNICIPAL LAW COMPLIANCE

7. Through counsel, Mr. Weeks timely served a Notice of Claim on the City of New York with respect to his claims arising under New York Law on June 29, 2020.

8. Mr. Weeks sat for a hearing consistent to General Municipal Law § 50-h on November 17, 2020.

9. More than 30 days have elapsed since the Notice of Claim was served, and Defendant City has neglected and/or refused to make adjustment, settlement or payment with respect to the injuries complained of.

JURY TRIAL DEMAND

10. Plaintiff hereby demands a jury trial on each of Plaintiff's claims for which a jury trial is allowed.

PARTIES

11. Plaintiff ANTOINE WEEKS is an African-American person who currently resides in the State of New York, Queens County.

12. Defendant City of New York (the "City") is a municipal entity created and authorized under the laws of the State of New York. The City is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

13. Defendants NYPD OFFICER MARK LEWIS, SHIELD NO. 5062; NYPD OFFICER FIRST NAME UNKNOWN DARCY; NYPD OFFICER KYLE YOUNG, 113th PRECINCT; NYPD OFFICER TIMOTHY RIZZO, 113th PRECINCT DETECTIVE SQUAD; NYPD SERGEANT EDWARD SCALI, 113th PRECINCT; NYPD SERGEANT CHARISSE GONZALEZ, 113th PRECINCT; NYPD DET. PATRICK NOZDROVICKY, 323-113 DETECTIVE SQUAD; NYPD OFFICER MATILDE LEONARDI, QUEENS SOUTH EVIDENCE COLLECTION TEAM; NYPD SERGEANT MATTHEW SLEAR, PATROL BOROUGH QUEENS SOUTH ACU; NYPD SDS CORTNEY CUMMINGS, 101st PRECINCT DETECTIVE SQUAD; NYPD SGT. JOHN MCCORMICK, 113th PRECINCT; and NYPD DET. JAMES MCGARRY, 113th PRECINCT (collectively, the "Individual Defendants") are NYPD members who were personally involved in violating Plaintiff's rights, as set forth below.

14. At all times hereinafter mentioned, the Individual Defendants were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City of New York.

15. Each and all of the acts and omissions of the Individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

16. At all times relevant herein, the Individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

17. At all times relevant herein, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

18. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

19. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

20. The Individual Defendants are each entitled to indemnification by the City of New York under New York law for any liability arising from their conduct described herein.

21. The Individual Defendants are each entitled to indemnification by the City of New York by contract for any liability arising from their conduct described herein.

22. Each Individual Defendant is sued in their individual capacity.

STATEMENT OF FACTS

23. At around 11:30PM on September 26, 2016, Plaintiff Antonine Weeks went to the NYPD's 113th Precinct, located at 167-02 Baisley Blvd, Jamaica, NY 11434, to recover the belongings of an arrested friend who was there.

24. Mr. Weeks parked lawfully in a public, visitor's parking spot outside the 113th Precinct that was designated as such.

25. There was no posted limit for parking in that spot.

26. Mr. Weeks locked the car and left it parked lawfully in the visitor's parking spot before entering the 113th Precinct.

27. When Mr. Weeks entered the 113th Precinct, he first encountered Defendant NYPD OFFICER KYLE YOUNG.

28. When Mr. Weeks entered the 113th Precinct, Defendant NYPD OFFICER MARK LEWIS, SHIELD NUMBER 5062 was processing the arrest of Mr. Weeks's friend.

29. When Mr. Weeks asked Defendant Young about picking up his friend's property, Defendant Lewis – who had been processing the friend's arrest - began interacting with Mr. Weeks

30. Defendant Lewis asked for Mr. Weeks's identification, which Mr. Weeks provided.

31. Defendant Lewis then searched Mr. Weeks's name in a police database and discovered an open bench warrant that, upon information and belief, he believed was associated with Mr. Weeks.

32. Defendant Lewis arrested him in relation to the bench warrant at around 11:45PM.

33. The bench warrant against Mr. Weeks was for an unsigned "declaration of delinquency" arising from a three-year-old, misdemeanor matter that was on for compliance, which would have been dismissed immediately when it came before a judge.

34. Defendant Lewis searched Mr. Lewis and seized his car keys.

35. Mr. Weeks called his girlfriend to retrieve his keys, car, and other possessions.

36. However, rather than waiting for Mr. Weeks's girlfriend to arrive, Defendant Lewis illegally seized the car and its contents, moving them off the legal street parking spot and into NYPD custody.

37. Within around 10 minutes of arresting Mr. Weeks, Defendant Lewis then illegally searched the vehicle.

38. Prior to impounding and searching the vehicle, Defendant Lewis had no reason to believe there was any issue with the license or registration of the vehicle.

39. Defendant Lewis did not run the license plate of the vehicle until well after he had recovered the gun from the vehicle.

40. Defendant Lewis made no memo book entry or notation related to the license or registration of the vehicle.

41. Upon information and belief, Defendant Young also participated in the illegal search of the vehicle.

42. Defendant Lewis had no authority to seize or search the car.
43. Defendant Young had no authority to search the car.
44. Defendant Lewis knew, or should have known, he had no authority to seize or search the car.
45. Defendant Young knew, or should have known, that Defendant Lewis had no authorize to seize or search the car.
46. In searching the car, Defendants Lewis and Young did not follow the applicable procedures in New York City Patrol Guide Section 218-13 (“Inventory Searches of Automobiles and Other Property”).
47. Defendant Lewis took no photographs of the vehicle or property, made no contemporaneous record of searching the vehicle, no handwritten inventory log of the property kept inside the vehicle, and no entry in his memo book (or any other notes) regarding searching the vehicle, or the vehicle’s contents.
48. Defendants Lewis and Young knew, or should have known, they were not conducting a legal “inventory search” in compliance with Patrol Guide Section 218-13.
49. Defendant Lewis eventually discovered contraband including a handgun, a marijuana cigarette, and a sword.
50. Defendant Lewis seized that property as well as additional property in the car including Mr. Weeks’s cell phone and many tools that Mr. Weeks used in his work as a handyman.
51. But for the unlawful search and seizure of the car, Mr. Weeks would have been released from police custody in connection with the bench warrant within 24 hours.

52. Instead, Mr. Weeks remained in custody from September 16, 2016 until April 3, 2020.

53. At around 12:45AM on September 17, 2016, an NYPD Evidence Collection Team arrived at the 113th Precinct.

54. Upon information and belief, Defendants NYPD OFFICER MATILDE LEONARDI, QUEENS SOUTH EVIDENCE COLLECTION TEAM and NYPD OFFICER FIRST NAME UNKNOWN DARCY were part of that team.

55. Upon information and belief, Defendants Leonardi and Darcy searched the gun and retrieved DNA samples therefrom.

56. Upon information and belief, under the supervision of Defendant NYPD SERGEANT EDWARD SCALI, 113th PRECINCT, Defendant Lewis then vouchered the gun allegedly seized from Mr. Weeks's car as "arrest evidence" at around 1:22AM.

57. Upon information and belief, at around 3:48AM, also under the supervision of Defendant Scali, Defendant Lewis vouchered alleged marijuana allegedly seized from MR. Weeks's car.

58. Upon information and belief, at around 6:40AM, 7:30AM, 9:14AM, 10:40AM, 11:33AM, 1:00PM, 2:08PM, and 2:57PM, Defendant Lewis vouchered other property allegedly seized from Mr. Weeks's car under the supervision of Defendant NYPD SERGEANT CHARISSE GONZALEZ, 113th PRECINCT.

59. At around 7:45AM on September 17, 2016, Defendant Leonardi vouchered DNA taken from the gun.

60. Defendant NYPD OFFICER TIMOTHY RIZZO, 113th PRECINCT DETECTIVE SQUAD is listed as the "Investigating" Officer; Defendant NYPD SDS CORTNEY

CUMMINGS, 101st PRECINCT DETECTIVE SQUAD is listed as the “Det. Squad Supervisor”; and NYPD SERGEANT MATTHEW SLEAR, PATROL BOROUGH QUEENS SOUTH ACU is listed as the “Supervisor” approving the voucher of the gun. Their names and similar descriptions of their roles are also on a Request or Laboratory Examination Report related to that DNA.

61. At around 4:25PM, Defendant vouchered Mr. Weeks’s car.

62. Each of Defendants Lewis, Young, Leonardi, Darcy, Scali, Gonzalez, Rizzo, Cummings, and Slear knew and/or should have known that they had no lawful authority to search and/or seize Mr. Weeks’s car and/or property from Mr. Weeks’s car.

63. Upon information and belief, NYPD DETECTIVE PATRICK NOZDROVICKY, 323-113 DETECTIVE SQUAD was assigned to investigate Mr. Weeks related to the gun at around 9:00AM on September 17, 2016.

64. At around 10:00AM, Defendant Nozdrovicky attempted to interrogate Mr. Weeks, but Mr. Weeks invoked his rights to counsel and declined to answer questions.

65. At around 11:00AM, after Mr. Weeks had invoked his rights to counsel and declined to answer questions, Defendant Nozdrovicky had Defendant Lewis offer Mr. Weeks a cigarette for the purpose of tricking Mr. Weeks and obtaining his DNA without his consent.

66. Defendants Nozdrovicky and Lewis in fact obtained that DNA without Mr. Weeks’s consent.

67. NYPD DET. JAMES MCGARRY, 113th PRECINCT is listed on Defendants Nozdrovicky’s paperwork as the supervisor who reviewed and approved his work.

68. At around 3:45PM, Defendant Lewis vouchered the cigarette butt, with the approval of Defendant NYPD SGT. JOHN MCCORMICK, 113th PRECINCT.

69. Each of Defendants Lewis, Nozdrovicky, McGarry, and McCormick knew and/or should have known that they had no lawful authority to search and/or seize Mr. Weeks's DNA, particularly after Mr. Weeks had invoked his rights to counsel and declined to answer questions.

70. On September 17, 2016, Defendant Lewis spoke with and/or otherwise provided information to the Office of the District Attorney of Queens County about the facts and circumstances that led to Mr. Weeks's arrest, the seizure of the car, the search of the car, and the discovery of contraband in the car.

71. Upon information and belief, other Defendants who were involved in arresting and/or searching Mr. Weeks and/or his property also spoke with and/or otherwise provided information to the Office of the District Attorney of Queens County about the facts and circumstances leading to Mr. Weeks's arrest.

72. *Inter alia*, Defendant Lewis provided false information to prosecutors regarding the facts and circumstances that led to Mr. Weeks's arrest, the seizure of the car, the search of the car, and the discovery of contraband in the car.

73. Also on September 17, 2016, based entirely on evidence obtained as a result of the illegal seizure and search of the car, Defendant Lewis swore out an accusatory instrument charging Mr. Weeks with violating Penal Law ("PL") § 265.03(1) (Criminal Possession of a Weapon in the Second Degree); PL § 265.03(3) (Criminal Possession of a Weapon in the Second degree); PL § 265.02-1 (Criminal Possession of a Weapon in the 3rd Degree); PL § 165.45-4 (Criminal Possession of Stolen Property in the Fourth Degree); PL § 265.01-2 (Criminal Possession of a Weapon in the Fourth Degree); PL § 221.05 (Unlawful Possession of Marijuana); Vehicle and Traffic Law ("VTL") § 401-1A (Registration of Motor Vehicles; Fees;

Renewals); and VTL § 402-4 (Public Highway M.V. Driving with Improper Registration Plates).

74. Defendant Lewis testified before a Grand Jury regarding the facts and circumstances that led to Mr. Weeks's arrest, the seizure of the car, the search of the car, and the discovery of contraband in the car.

75. Defendant Lewis's grand jury testimony included false testimony about the facts and circumstances that led to Mr. Weeks's arrest, the seizure of the car, the search of the car, and the discovery of contraband in the car.

76. For example, *inter alia*, Defendant Lewis falsely testified to the Grand Jury that:

- a. He "took note" of Mr. Weeks's license plate number when he first saw Mr. Weeks park the vehicle in front of the 113th Precinct, before Mr. Weeks entered the 113th Precinct;
- b. When Mr. Weeks gave Lewis his identification, Defendant Lewis recognized Mr. Weeks's name from a printout he had seen at the 113th Precinct that included information about people who had bench warrants;
- c. The car of a person arrested as Mr. Weeks was "can't be parked on a public street if the individual is in [police] custody, so [police] have to" search it to "make sure [they] inventory everything" in order to "safeguard the property"; and
- d. After searching Mr. Weeks and retrieving the key to the car, Defendant Lewis seized and moved the car behind the 113th Precinct, and conducted an "inventory search" of the car as was required, after which he discovered, among other things, contraband.

77. In testifying before the Grand Jury, Defendant Lewis also withheld critical information, such as that the car was parked legally in a public, visitor's parking space for which there was no time limit and that there was no history of vandalism or burglary in the area of the NYPD's 113th Precinct that would have justified impounding the vehicle to safeguard it against potential vandalism or burglary.

78. Upon information and belief, that false testimony was consistent with the information Defendant Lewis had provided to prosecutors before he gave the testimony.

79. The Court set bail on Mr. Weeks in an amount that he was not able to make.

80. Mr. Weeks remained in the general population at Riker's Island for around a year.

81. During the pendency of the criminal proceedings against him, Mr. Weeks moved through counsel to suppress the physical evidence on the ground that the impoundment and searches were unlawful.

82. The Supreme Court held a *Mapp/Dunaway* hearing at which Defendant Lewis testified on May 3, 2017 and June 16, 2017 *Mapp/Dunaway*.

83. During the May 3, 2017 suppression hearing, Defendant Lewis gave additional false testimony, including that:

- e. When Mr. Weeks gave Lewis his identification, Defendant Lewis recognized Mr. Weeks's name from his past work in the Anti-Crime Unit;
- f. He seized and searched the car to "safeguard" Mr. Weeks's property and "avoid allegations" against police;
- g. He noticed Mr. Weeks's license plate when he had moved the car;
- h. He conducted an "inventory search" of the car; and
- i. He followed NYPD Patrol Guide Section 218-13 governing inventory searches of automobiles and other property when he seized and searched Mr. Weeks's vehicle.

84. Upon information and belief, that false testimony was consistent with the information Defendant Lewis had provided to prosecutors before he gave the testimony.

85. Following the suppression hearing at which Defendant Lewis testified, the Supreme Court improperly denied Mr. Weeks's suppression motion.

86. Faced with the Supreme Court's improper denial of the suppression motion, on October 17, 2017, Mr. Weeks pleaded guilty to the Criminal Possession of a Weapon in the Second Degree charge in exchange for a 5-year sentence with 5 years of post-release supervision.

87. The Supreme Court subsequently imposed the 5-year sentence with 5 years of post-release supervision.

88. On appeal, the Appellate Division, Second Department reversed in a decision rendered on April 2, 2020.

89. The Second Department found that the prosecution had

failed to establish the lawfulness of the impoundment of the defendant's car and subsequent inventory search....The arresting officer testified that the defendant's vehicle was legally parked in a visitor's parking space, and the officer was unaware of posted time limits pertaining to the visitor parking spaces. Although the officer testified that he impounded the defendant's vehicle to safeguard the defendant's property against a potential burglary, the People presented no evidence demonstrating any history of burglary or vandalism in the area where the defendant had parked his vehicle. Thus, the People failed to establish that the impoundment of the defendant's vehicle was in the interests of public safety or part of the police's community caretaking function ... Moreover, the People failed to present any evidence as to whether the New York City Police Department had a policy regarding impoundment of vehicles, what that policy required, or whether the arresting officer complied with that policy when he impounded the defendant's vehicle....

Accordingly, the impoundment of the defendant's vehicle was unlawful and the physical evidence that was recovered from the vehicle during the inventory search subsequent to that impoundment must be suppressed as fruits of the unlawful impoundment....Without the suppressed evidence, there could not be sufficient evidence to prove the defendant's guilt beyond a reasonable doubt, and the indictment must therefore be dismissed....

See People v. Weeks, 2020 NY Slip Op 02198, Decided on April 2, 2020, Appellate Division, Second Department.

90. As a result of the Second Department's April 2, 2020 decision, the indictment against Mr. Weeks was dismissed on April 2, 2020.

91. Mr. Weeks was released from custody on April 3, 2020.

92. Mr. Weeks never got his car or any of its contents (including his many tools) back and does not know where they are.

93. During his around three-and-a-half years in custody, Mr. Weeks was moved from Riker's Island to Upstate Correctional Facility, Downstate Correctional Facility, and Mary Correctional Facility

94. During his time in custody, Mr. Weeks also missed the birth of one of his daughters, his brother's funeral, the early years in his three daughters' lives, and other major life events.

95. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

FIRST CLAIM FOR RELIEF

FALSE ARREST AND FALSE IMPRISONMENT UNDER NEW YORK LAW

96. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

97. By the actions described above, Defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. Plaintiff was conscious of the confinement and it was without Plaintiff's consent.

98. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff

pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

SECOND CLAIM FOR RELIEF

ABUSE OF PROCESS UNDER NEW YORK LAW

99. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

100. By the conduct and actions described above, Defendants employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and the Defendants were seeking a collateral advantage or corresponding detriment to Plaintiff, which were outside the legitimate ends of the process.

101. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

FOURTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER NEW YORK LAW

102. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

103. Defendants commenced criminal proceedings against Plaintiff maliciously and without probable cause.

104. The grand jury indictment was procured using false evidence and statements and by withholding exculpatory evidence and statements.

105. All charges were terminated in Plaintiff's favor.

106. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

FIFTH CLAIM FOR RELIEF

VIOLATIONS OF PLAINTIFF'S DUE PROCESS/"FAIR TRIAL" RIGHTS UNDER NEW YORK LAW

107. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

108. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court.

109. The Individual Defendants withheld exculpatory evidence from the prosecution, defense counsel, and court.

110. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

SIXTH CLAIM FOR RELIEF

NEGLIGENT HIRING, SCREENING, AND SUPERVISION UNDER NEW YORK LAW

111. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

112. Defendant City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants.

113. Upon information and belief, Defendant City knew or should have known through the exercise of reasonable diligence that the individual Defendants were unfit for their positions.

114. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

SEVENTH CLAIM FOR RELIEF

RESPONDEAT SUPERIOR - AGAINST DEFENDANT CITY OF NEW YORK

115. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

72. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

116. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

EIGHTH CLAIM FOR RELIEF

VIOLATIONS OF PLAINTIFF'S RIGHTS UNDER THE NEW YORK STATE CONSTITUTION

117. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

118. Defendants, acting under color of law, violated Plaintiff's property and liberty rights under Article 1, § 6 of the New York State Constitution; rights to equal protection of laws under Article 1, § 11 of the New York State Constitution; and rights to be free from unreasonable searches and seizures under Article 1, § 12 of the New York State Constitution.

119. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

120. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

NINTH CLAIM FOR RELIEF

AGAINST ALL DEFENDANTS UNDER 42 USC § 1983 FOR VIOLATIONS OF PLAINTIFF'S RIGHTS SECURED UNDER THE FOURTH, FIFTH, SIX, AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

121. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

122. Defendants, under color of state law, subjected Plaintiff to the foregoing acts and omissions, thereby depriving Plaintiff of Plaintiff's rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from false arrest and imprisonment without probable cause; (b) freedom from the lodging of false

charges by police; (c) freedom from having police officers fabricate evidence; (d) freedom from malicious prosecution by police; (e) freedom from abuse of process; (f) freedom from deprivation of liberty and/or property without due process of law; (g) freedom from deprivation of fair trial rights; and (h) freedom to enjoy the equal protection, privileges and immunities under the laws.

123. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

TENTH CLAIM FOR RELIEF

MONELL CLAIMS AGAINST DEFENDANT CITY OF NEW YORK

124. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

125. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

126. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of his liberty as well as his constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees; and
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: June 30, 2021
Brooklyn, New York



Gideon Orion Oliver
Attorney for Plaintiff
Antoine Weeks
277 Broadway, Suite 1501
New York, New York 10007
718-783-3682
Gideon@GideonLaw.com

ATTORNEY VERIFICATION

I, Gideon Orion Oliver, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff does not reside in the County where I maintain my offices.

Dated: Brooklyn, New York
June 30, 2021



Gideon Orion Oliver
Attorney for Plaintiff
Antoine Weeks
277 Broadway, Suite 1501
New York, New York 10007
718-783-3682
Gideon@GideonLaw.com